

A non-attorney cannot represent another individual in legal proceedings – even if that person has a ‘power of attorney’ to allow such representation. (*People ex rel. Department of Public Works v. Malone* (1965) 232 Cal.App.2d 531, 536-37. *See also Campbell v. Jewish Committee for Personal Service* (1954) 125 Cal.App.2d 771, 722, “**not being a lawyer, Campbell cannot appear as an attorney for his brother.**” (emphasis added.)) “[I]t has been well settled that persons may represent their own interests in legal proceedings but may not ‘practice law [for another] in this State unless [they are] active member[s] of the state bar.’” (*Drake v. Superior Court* (1994) 21 Cal.App.4th 1826, 1830)

As such, each of the Horton Defendants is responsible for their own arguments and must file their own motions. At a minimum, they must file a single joint motion if both brothers are making the same arguments and relying on the same evidence.

Conclusion

Defendant Kevin Horton’s joinder motion is **denied**.

6. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING ON SUMMARY MOTION BY RICKY D. HORTON
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Ricky Dean Horton’s Motion for Summary Judgment (“MSJ”).

Defendant’s MSJ is **denied** as set forth below.

General Factual and Procedural Background

This matter pertains to a dispute regarding financing and title related to real property located at 3501 DiMaggio Way in Antioch, California (the “Property”).

In 2017, non-moving Defendant Kevin Horton obtained a loan secured by a Deed of Trust on the Property. It appears that in 2020, Kevin Horton applied for a new loan to refinance the Property. (UMF 1.) The new loan was allegedly obtained from Defendant Freedom Mortgage Corporation in the amount of \$326,574, the majority of which was intended to pay off the 2017 loan. (UMF 1-2.) The loan instructions specify: “Freedom Mortgage Corporation to Payoff Mortgage.” (*Ibid.*; Ricky Horton Ex. 1.)

On June 24, 2020, a new Deed of Trust was recorded indicating that Kevin Horton and Megan Lee Henderson (as joint tenants) obtained a loan from Freedom Mortgage in the amount of \$326,574 secured by the Property. (UMF 3.) Kevin Horton received correspondence from Freedom Mortgage confirming that 2017 mortgage was paid off and the 2017 Deed of Trust was cancelled. (UMF 5; Ricky Horton Ex. 3.)

In January 2023, a Grant Deed was recorded indicating that the Property was being transferred from Kevin Horton to Ricky Horton. (UMF 7.) Plaintiff Old Republic provided a title insurance policy to Ricky Horton in connection with this purchase. (*Ibid.*) As part of the process, Old Republic requested Ricky

Horton to provide copies of the 2017 cancelled note and Deed of Trust provided by Freedom Mortgage. (UMF 8.)

On August 17, 2023, Old Republic filed its complaint in this matter seeking declaratory and injunctive relief. The essence of Old Republic's complaint, explained in more detail below, is that Kevin Horton never obtained the loan from Freedom Mortgage in 2020, the 2017 loan was never actually satisfied, and the Deed of Trust indicating that such had occurred was recorded in error.

Ricky Dean Horton filed the instant MSJ on October 17, 2025. Old Republic filed its opposition on December 12, 2025. Freedom Mortgage Company filed an opposition on December 22, 2025. Nationstar Mortgage, LLC (dba Mr. Cooper) and Lakeview Servicing, LLC filed an opposition on December 23, 2025. The entity parties that filed oppositions will be referred to as the "Opposing Parties."

Standard of Review

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

Once the defendant meets that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*) The plaintiff then has the burden of demonstrating that triable issues of material fact exist. (*Ibid.*)

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

Initial Consideration

Electronic Bookmarks

Defendant Ricky Horton's MSJ is accompanied by a declaration which attached eight exhibits spanning over 80 pages but fails to include bookmarks to each of the exhibits. "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Defendant Ricky Horton is reminded to comply with the Rules of Court going forward.

Analysis

The timeline of events outlined above is essentially not disputed by the Parties. The Opposing Parties,

however, indicate that it is not the full picture of what occurred. Instead, they contend that the 2020 refinance loan was never issued, and the 2017 loan was never satisfied.

Old Republic cites Freedom Mortgage's "Funding Request" document produced in discover which indicates that the 2020 loan was never finalized. (Brink Decl. ¶ 4, Ex. B.) The "Funding Request" states at the top: "VOIDED!! VOIDED!! VOIDED!! VOIDED!! VOIDED!!" (*Ibid.*) It also notes in the comments section: "Funding reversed – The loan cannot close" (*Ibid.*) The second page of the documents notes that the mortgage application was "Denied." (*Ibid.*)

Documents produced by Cross-Defendant Title Connect, Inc., which was the purported settlement agent for the 2020 loan that supposedly paid off the 2017 loan, indicate that the 2020 loan was withdrawn and unfunded due to "a UCC issue." (Brink Decl. ¶ 3, Ex. A at p.3.) The "UCC issue" relates to "additional signing language" added to the loan documents by Kevin Horton before signing. (*Ibid.*)

As noted by Freedom Mortgage, when Kevin Horton executed the Loan Application and Closing Disclosure he included additional language on the documents – referred to as "sovereign citizen language." (Tarver Decl. ¶ 11, Exs. D & E.) Specifically, next to the signature on each document Kevin Horton inserted the following: "UCC 1-207/1-308". Below is an example:

or obtain any information or data relating to the Loan, for any legitimate business purpose through any source, including a source named in this application or a consumer reporting agency.

Borrower's Signature X 	Date June 15 2020	Co-Borrower's Signature X	Date
Loan Originator's Signature X Matthew Joel Bell	UCC 1-207/1-308		Date 06/15/2020

Due to the addition of this language, the 2020 loan was cancelled, the 2017 loan was never paid off, and Kevin Horton was notified of the cancellation. (Tarver Decl. ¶ 12-14, Exs. F & G.) The Title Connect documents also indicate that both Kevin Horton and Ricky Horton were informed of this issue and told that the loan documents would need to be re-issued without the additional language. (Brink Decl. Ex. A at Bates 0012.)

Freedom Mortgage acknowledges that even though the 2020 loan was cancelled and the 2017 loan was not paid off, it mistakenly recorded the 2020 Deed of Trust with the Contra Costa County Recorder on June 24, 2020. (Tarver Decl. ¶ 15, Ex. E.) Freedom also mistakenly issued two letters to Kevin Horton stating that the 2017 loan had been paid off and sending him the 2017 Note and 2017 Deed of Trust. (*Id.* at ¶ 16, Ex. H.) The form letters and loan documents are automatically mailed to customers after refinancing and were mistakenly sent while Freedom's employees were determining whether the loan documents could be processed with the additional UCC language. (*Id.* ¶ 18, Ex. G.)

Freedom reached out to Kevin Horton on several occasions to explain the situation and request that he re-sign the loan documents without the additional UCC language. (Tarver Decl. ¶ 19-21, Ex. G & J.) On April 22, 2021, Freedom sent an official letter to Kevin Horton indicating that it "incorrectly advised [him] in an August 26, 2020 correspondence of your loan being paid in full and enclosed your original Note and original security instrument." (*Id.* at Ex. J.) Kevin Horton declined to re-sign the loan documents without the UCC language and failed to return the 2017 loan documents. (Tarver Decl. ¶ 21.)

In January 2022, Nationstar began servicing the 2017 Loan. (Tarver Decl. ¶ 23, Ex. K; Winchester Decl. ¶ 5, Exs. 4 & 5.) In March 2022, Kevin Horton sent a letter to Nationstar claiming that the 2017 loan had been refinanced and paid in full. (Winchester Decl. ¶ 7.) Nationstar responded with a detailed

letter explaining that the 2020 refinancing had been reversed and that the 2017 loan had not been paid off. (*Id.* at Ex. 7.) It also outlined the numerous communications with Mr. Horton in which this had been previously explained to him. (*Ibid.*)

On April 4, 2022, Nationstar sent a letter to Kevin Horton indicating that it intended to foreclose on the Property due to his failure to make payments as of February 1, 2022. (Winchester Decl. ¶ 8, Ex. 8.) At that time, the missed payments amounted to almost \$7,000. (*Ibid.*) The Opposing Party's evidence also appears to show that Mr. Horton had continued to make payments under the 2017 loan as late as January 14, 2022, when a payment of \$2,301.99 was made by check. (Brink Decl. ¶ 5, Ex. C.) This appears to show that Mr. Horton knew the 2017 loan had not been paid and was still in effect.

In addition to the above, Old Republic submits Requests for Admission ("RFA") propounded on Ricky Horton that were deemed admitted by the Court due to Ricky Horton's failure to respond to the Requests. (Brink Decl. Exs. D-E.) These RFAs include an admission that Kevin Horton did not personally pay off the 2017 loan (RFA 5), that Kevin Horton was advised by Freedom that the 2020 refinance application was denied (RFA 7), and that Ricky Horton knew in January of 2023 that the 2017 loan had not been paid off (RFA 15.)

The RFAs also include an admission that Ricky Horton "obtained a title policy from Old Republic in 2023 based upon the false claims that the 2017 Loan had been paid in full." (RFA 27.) Ricky Horton was also deemed to have admitted that prior to his purchase of the Property from Kevin Horton "a reconveyance was recorded, which formally cancelled the 2020 deed of trust." (RFA 19.) These clearly establish that Ricky Horton knew that the 2017 loan had not been paid and that the 2020 deed of trust was cancelled.

In his Reply, Mr. Horton raises for the first time two new theories as to why the Opposing Parties' arguments fail. Namely, he contends that (1) there must be some sort of fraud being perpetrated upon him or his property by the Opposing Parties, and/or (2) that Freedom is prohibited from reversing its decisions granting the 2020 loan application.

"The general rule of motion practice ... is that new evidence is not permitted with reply papers." (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228 quoting *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) This prohibition also applies to new legal theories and arguments. (*Ibid.*) New arguments raised for the first time in a reply brief are ordinarily disregarded "because such consideration would deprive the respondent of an opportunity to counter the argument." (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.)

The *Maleti* court cited the Rutter Guide's warning with approval: "It is a serious mistake to leave key arguments for the reply brief ... [because] [t]he court is likely to *refuse to consider new evidence or arguments first raised in reply papers.*" (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) ¶ 9:106.1, italics in original.)

As Mr. Horton did not raise these issues in his opening papers, the Court will not consider them.

All the above show that there are disputed material facts which preclude Defendant Ricky Horton from prevailing on his motion for summary judgment.

Conclusion

Ricky Horton's motion for summary judgment is **denied**.

7. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO JIHOON YOU
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO YONGCHAN PARK
FILED BY: YANG, MICHAEL
TENTATIVE RULING:

Before the Court is Defendant Michael Yang and Minhe, Inc. (collectively, “Defendants”)’s Motion for Judgment on the Pleadings (“MJOP”). The MJOP relates to Plaintiff Yongchan Park (“Plaintiff”)’s “Notice of Plaintiff/Respondent Yonchan Park’s Intent to Seek Additional Claims at Trial.”

Defendants purport to bring this motion pursuant to California Rule of Court § 3.1112 and Code of Civil Procedure § 439. Rule 3.1112 covers the required papers for motions and papers in support and CCP § 439 is the meet and confer statute. No reference is made in the motion to the actual statute authorizing judgment on the pleadings, Code of Civil Procedure § 438.

For the following reasons, the MJOP is **denied**.

Analysis

The instant case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code § 98.2(a) by Defendants. (Labor Code § 98.2 “[P]arties may seek review by filing an appeal to the superior court, where the appeal shall be heard de novo”.) In response, Yongchan Park and Jihoon You filed notices of intent to seek additional claims at trial. In their notices, Park and You reasserted their wage claims they had raised before the Labor Commissioner and added new claims, including claims for minimum wages, overtime premium compensation, provision of unpaid meal periods, provision of paid rest periods, waiting time penalties, FLSA claims, violation of 18 USC § 1595, and violation of Labor Code § 970. (See Notice of Plaintiff/Respondent Yongchan Park’s Intent to Seek Additional Claims at Trial; see Notice of Plaintiff/Respondent Jihoon You’s Intent to Seek Additional Claims at Trial; see also *Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1120 (*Murphy*) [trial court has discretion to allow employee to raise additional claims in response to employer’s Berman appeal].)

In a recent opinion, the California Supreme Court reiterated that in the context of an appeal from a Berman hearing “the trial court may, in its “sound discretion,” allow an employee to raise additional claims that the Labor Commissioner did not consider during the administrative stage of the Berman process. (*Murphy, supra*, 40 Cal.4th at p. 1120; see *id.* at p. 1118 [“Trial courts are equipped to weigh the various considerations” associated with the possible addition of a claim, “e.g., whether the claims